

EX-10.1

EXHIBIT 10.1*

Commercial Paper Dealer Agreement
4(a)(2) Program

Between:

PayPal Holdings, Inc.

,
as Issuer

and
[***], as Dealer

Concerning

Notes to be issued pursuant to a Commercial Paper Issuing and Paying Agent Agreement, dated as of the date hereof, between the Issuer and [***], as Issuing and Paying Agent

Dated as of November 14, 2025

*

The Dealer Agreements are substantially identical in all material respects except as to the Dealer party thereto.

Commercial Paper Dealer Agreement
4(a)(2) Program

This
commercial paper dealer agreement (this “
Agreement
”) sets forth the understandings between the Issuer and the Dealer, each named on the cover page hereof, in connection with the issuance and sale by the Issuer of its short-term promissory notes (the “
Notes
”) through the Dealer.

Certain terms used in this Agreement are defined in
Section
 6
hereof.

The Addendum to this Agreement, and any Annexes or Exhibits described in this Agreement or such Addendum, are hereby incorporated into this Agreement and made fully a part hereof.

1.

OFFERS, SALES AND RESALES OF NOTES.

1.1ÃWhile (i) the Issuer has and shall have no obligation to sell any Notes to the Dealer or

to permit the Dealer to arrange the sale of any Notes for the account of the Issuer, and (ii) the Dealer has and shall have no obligation to purchase any Notes from the Issuer or to arrange the sale of any Notes for the account of the Issuer, the parties hereto agree that in any case where the Dealer purchases Notes from the Issuer, or arranges for the sale of Notes by the Issuer, such Notes will be purchased or sold by the Dealer in reliance on the representations, warranties, covenants and agreements of the Issuer contained herein or made pursuant hereto and on the terms and conditions and in the manner provided herein and issued and sold by the Issuer in reliance on the covenants and agreements of the Dealer contained herein or made pursuant hereto and on the terms and conditions and in the manner provided herein.

1.2 So long as this Agreement shall remain in effect, and in addition to the limitations contained in Section

1.7

hereof, the Issuer shall not, without the consent of the Dealer, offer, solicit or accept offers to purchase, or sell, any Notes except (a) in transactions with one or more dealers which may from time to time after the date hereof become dealers with respect to the Notes by executing with the Issuer one or more agreements which contain provisions substantially similar to those contained in

Section

1

of this Agreement, of which the Issuer hereby undertakes to provide the Dealer prompt notice, or (b) in transactions with the other dealers listed on the Addendum hereto, which are executing agreements with

the Issuer which contain provisions substantially identical to

Section

1

of this Agreement contemporaneously herewith or have executed agreements with the Issuer prior to the date hereof which contain such provisions (in the case of clauses (a) and (b), each, an

Other Dealer

and collectively, the

Other Dealers

). In no event shall the Issuer offer, solicit or accept offers to purchase, or sell, any Notes directly on its

own behalf in transactions with persons other than Other Dealers as specifically permitted in this

Section

1.2

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1.3 The Notes shall have a minimum Face Amount of \$250,000 or integral multiples of \$1,000 in excess thereof, will bear such interest

rates, if interest bearing, or will be sold at such discount from their Face Amounts, as shall be agreed upon by the Dealer and the Issuer, shall have a maturity not exceeding 397 days from the date of issuance and may have such additional terms as are specified in

Exhibit

B

hereto, the Private Placement Memorandum or a pricing supplement, or as otherwise agreed upon by the applicable purchaser and the Issuer. The Notes shall not contain any provision for extension, renewal or automatic rollover.

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1.4 The authentication and issuance of, and payment for, the Notes shall be effected in accordance with the Issuing and Paying Agent Agreement, and the Notes shall be book-entry notes evidenced by one or more master notes (each, a “

Master Note

”) registered in the name of The Depository Trust Company

(“

DTC

”) or its nominee, in the form or forms annexed to the Issuing and Paying Agent Agreement.

1.5 If the

Issuer and the Dealer shall agree on the terms of the purchase of any Note by the Dealer or the sale of any Note arranged by the Dealer (including, but not limited to, agreement with respect to the date of issue, purchase price, principal amount,

maturity and interest rate or interest rate index and margin (in the case of interest-bearing Notes) or discount thereof (in the case of Notes issued on a discount basis), and appropriate compensation for the Dealer’s services hereunder)

pursuant to this Agreement, the Issuer shall cause such Note to be issued and delivered in accordance with the terms of the Issuing and Paying Agent Agreement and payment for such Note shall be made by the purchaser thereof, either directly or

through the Dealer, to the Issuing and Paying Agent, for the account of the Issuer. Except as otherwise agreed, in the event that the Dealer is acting as an agent and a purchaser shall either fail to accept delivery of or make payment for a Note on

the date fixed for settlement, the Dealer shall promptly notify the Issuer, and if the Dealer has theretofore paid the Issuer for the Note, the Issuer will promptly return such funds to the Dealer upon notice of such failure.

1.6 The Dealer and the Issuer hereby establish and agree to observe the following procedures in connection with offers, sales and subsequent resales or other transfers of the Notes:

(a) Offers and sales of the Notes by or through the Dealer shall be made only

to: (i) investors reasonably believed by the Dealer to be Qualified Institutional Buyers or Institutional Accredited Investors or

(ii) non-bank

fiduciaries or agents that will be purchasing Notes for

one or more accounts, each of which is reasonably believed by the Dealer to be an Institutional Accredited Investor.

(b) Resales

and other transfers of the Notes by the holders thereof shall be made only in accordance with the restrictions in the legend described in clause (e) below.

(c) No general solicitation or general advertising shall be used in connection with the offering of the Notes. Without limiting the

generality of the foregoing, without the prior written approval of the Dealer, the Issuer shall not issue any press release or place or publish any “tombstone” or other advertisement relating to the offer and sale of the Notes.

Notwithstanding the foregoing, (i) any publication by the Issuer of a notice in accordance with Rule 135c under the Securities Act shall not be deemed to constitute general solicitation or general advertising hereunder and shall not require

prior written approval of the Dealer (provided

, that the Issuer shall provide a copy thereof to the Dealer at least three business days prior to publication) and (ii) the Issuer shall be permitted to make such filings with the SEC that the Issuer reasonably determines is required to comply with Section 13 or 15(d) of the Exchange Act, and the Dealer acknowledges the Issuer may file a current report on Form 8-K

on or about the date hereof with

;

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respect to transactions contemplated hereby; provided

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however

, that unless otherwise prohibited by applicable securities laws, rules and regulations, the Issuer shall omit the name

of the Dealer from any publicly available filing (including the current report on Form 8-K)

made by the Issuer that makes reference to the offer or sale of the Notes or this Agreement, including by redacting

the Dealer's name and any contact or other information that could identify the Dealer from any agreement or other information included in such filing. For the avoidance of doubt, the Issuer shall not post the Private Placement Memorandum on a website without the consent of the Dealer and each other dealer or placement agent, if any, for the Notes.

(d) No Note sold to any

one purchaser or issued by the Issuer shall be in a Face Amount of less than \$250,000. If the purchaser of any Note is a non-bank

fiduciary acting on behalf of others, each person for whom such purchaser is acting must purchase a Note in a Face Amount of at least \$250,000.

(e) Offers and sales of the Notes shall be subject to the restrictions described in the legend appearing on

Exhibit A

hereto. A legend substantially to the effect of such

Exhibit A

shall appear as part of the Private Placement Memorandum used in connection with offers and sales of Notes

hereunder, as well as on each Master Note representing book-entry Notes offered and sold pursuant to this Agreement.

(f) Prior to

the sale of any Notes to any purchaser for which the Dealer has acted as the dealer, the Dealer shall furnish or make available or shall have furnished or made available to each purchaser of any Notes for which it has acted as the dealer a copy of

the then-current Private Placement Memorandum unless such purchaser has previously been furnished or

had made available to it a copy of the Private Placement Memorandum as then in effect. The Private Placement Memorandum shall expressly state that any person to whom Notes are offered shall have an opportunity to ask questions of, and receive information from, the Issuer and the Dealer and shall provide the names, addresses and telephone numbers of the persons from whom information regarding the Issuer may be obtained.

(g) The Issuer agrees, for the benefit of the Dealer and each of the holders and prospective purchasers from time to time of the Notes, that, if at any time the Issuer shall not be subject to Section 13 or 15(d) of the Exchange Act (other than by operation of an applicable exemption thereunder, such as Rule 12h-5),

the Issuer will furnish, upon request and at its expense, to the Dealer and to holders and prospective purchasers of Notes information required by Rule 144A(d)(4)(i) in compliance with Rule 144A(d).

(h) In the event that any Note offered or to be offered by the Dealer would be ineligible for resale under Rule 144A, the Issuer shall promptly notify the Dealer (by telephone, confirmed in writing, or email) of such fact and shall promptly prepare and deliver to the Dealer an amendment or supplement to the Private Placement Memorandum describing the Notes that are ineligible, the reason for such ineligibility and any other relevant information relating thereto.

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(i) The Issuer represents that it is not currently issuing commercial paper in the United States market in reliance upon the exemption provided by Section 3(a)(3) of the Securities Act. The Issuer agrees that if it shall issue commercial paper after the date hereof in reliance upon such exemption (i) the proceeds from the sale of the Notes will be segregated from the proceeds of the sale of any such commercial paper by being placed in a separate account; (ii) it will institute appropriate corporate procedures to ensure that the offers and sales of any notes issued by it pursuant to the Section 3(a)(3) exemption are not integrated with offerings and sales of Notes hereunder; and (iii) it will comply with each of the requirements of Section 3(a)(3) of the Securities Act in selling commercial paper or other short-term debt securities other than the Notes in the United States.

1.7 The Issuer hereby represents and warrants to the Dealer, in connection with offers, sales and resales of Notes, as follows:

(a) The Issuer hereby confirms to the Dealer that (except as permitted by Section 1.6(i))

, within the preceding six months, neither the Issuer nor any other person other than the Dealer or Other Dealers acting on behalf of the Issuer has offered or sold any Notes, or any substantially similar security of the Issuer, to, or solicited offers to buy any such security from, any person other than the Dealer or any Other Dealers. The Issuer also agrees that (except as permitted by Section

 1.6(

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), as long as the Notes are being offered for sale by the Dealer and any Other Dealers as contemplated hereby, and until at least six months after the offer of Notes hereunder has been

terminated, neither the Issuer nor any other person other than the Dealer or any Other Dealers will offer the Notes or any substantially similar security of the Issuer (including, without limitation, medium term notes issued by the Issuer that could

be integrated with the Notes for purposes of the Securities Act) for sale to, or solicit offers to buy any such security from, any person other than the Dealer or any Other Dealers (except to the extent that any of the foregoing would not cause the

offer and sale of the Notes to no longer come within the exemptions of the Securities Act contemplated by this Agreement), it being understood that such agreement is made with a view to avoid causing the offer and sale of the Notes to cease to

qualify for the exemptions of the Securities Act contemplated by this Agreement and shall survive any termination of this Agreement. The Issuer hereby (i) represents and warrants that it has not taken or omitted to take, and (ii) covenants

that it will not take, or omit to take, in each case, any action, which action (or the absence thereof, in the case of an omission) would cause the offering and sale of Notes hereunder to be integrated with any other offering of securities in a

manner that would require registration of the Notes under the Securities Act whether such offering is made by the Issuer or some other party or parties.

(b) The Issuer represents and agrees that the proceeds of the sale of the Notes are not currently contemplated to be used for the

purpose of buying, carrying or trading securities within the meaning of Regulation T and the interpretations thereunder by the Board of Governors of the Federal Reserve System. In the event that the Issuer determines to use such proceeds for the

purpose of buying, carrying or trading securities, whether in connection with an acquisition of another company or otherwise, the Issuer shall give the Dealer at least five business days’ prior written notice to that effect. The Issuer shall

also give the Dealer prompt notice of the actual date that it commences to purchase securities with the proceeds of the Notes. Thereafter, in the event that the Dealer purchases Notes as principal and does not resell such Notes on the day of such

purchase, to the extent necessary to comply with Regulation T and the interpretations thereunder, the Dealer will sell such Notes either (i) only to offerees it reasonably believes to be Qualified Institutional Buyers or to Qualified

Institutional Buyers it reasonably believes are acting for other Qualified Institutional Buyers, in each case in accordance with Rule 144A, or (ii) in a manner which would not cause a violation of Regulation T and the interpretations

thereunder.

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1.8 The Issuer shall not issue Notes, or request the Dealer to offer and sell Notes, to the extent that after giving effect to such issuance of Notes (including the application of the proceeds thereof) the aggregate Face Amount of outstanding Notes under the Program would exceed the Maximum Amount. The Issuer may from time to time increase the Maximum Amount by:

(a) giving at least three calendar days’ notice by letter substantially in the form attached

hereto as

Exhibit

 C

(the “

Notification Letter for an Increase in the Maximum Amount

”) to the Dealer and the Issuing and Paying Agent; and

(b) delivery of (i) a certificate from a duly authorized officer of the Issuer (1) confirming that no changes have been made

to the organizational documents of the Issuer since the date a certified copy thereof was most recently delivered to the Dealer or, if there has been any such change, a certified copy of the related organizational documents currently in force, and

(2) certifying copies of the resolutions adopted by the board of directors or other applicable governing body of the Issuer authorizing the increase in the Maximum Amount; (ii) an updated or supplemental Private Placement Memorandum

reflecting the increase in the Maximum Amount; (iii) a legal opinion of counsel to the Issuer, addressed to the Dealer, in form and substance reasonably satisfactory to the Dealer; (iv) evidence from each nationally recognized statistical

rating organization (as such term is defined in Section 3(a)(62) of the Exchange Act, a “

Rating Agency

”) providing a rating of the Notes either (A) that such rating has been confirmed after giving effect to the increase

in the Maximum Amount or (B) setting forth any change in the rating of the Notes after giving effect to the increase in the Maximum Amount; and (v) such other certificates, opinions, letters and documents as the Dealer shall have

reasonably requested.

2.

REPRESENTATIONS AND WARRANTIES OF THE ISSUER.

The Issuer represents and warrants that:

2.1 The Issuer is a corporation duly incorporated, validly existing and in good standing under the laws of the jurisdiction of its

incorporation and has the corporate power and authority necessary to execute and deliver this Agreement, the Master Note and the Issuing and Paying Agent Agreement, to issue and sell the Notes and to perform its obligations under this Agreement, the Issuing and Paying Agent Agreement and the Notes.

2.2 This Agreement, the Master Note and the Issuing and Paying Agent Agreement have been duly authorized, executed and delivered by the Issuer and constitute valid and legally binding obligations of the Issuer, enforceable against the Issuer in accordance with their terms, except as enforceability may be limited by applicable

bankruptcy, insolvency, fraudulent transfer, reorganization, moratorium or similar laws affecting the enforcement of creditors’ rights generally or by equitable principles relating to enforceability (collectively, the “

Enforceability

Exceptions

”).

2.3 The Notes have been duly authorized by the Issuer and, when issued as provided in the Issuing and

Paying Agent Agreement, will be duly and validly issued and will constitute valid and legally binding obligations of the Issuer, enforceable against the Issuer in accordance with their terms, subject to the

Enforceability Exceptions.

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2.4 Assuming compliance by the Dealer with the terms applicable to it set forth in Section

 1.6

of this Agreement, the offer and sale of the Notes in the manner contemplated hereby do not require registration of the Notes under the Securities Act, and no indenture in respect of the Notes is required to be qualified under the Trust Indenture Act of 1939, as amended.

2.5 The Notes will rank at least pari

passu

in

right of payment with all other unsubordinated indebtedness of the Issuer.

2.6 Assuming compliance by the Dealer with the terms applicable to it set forth in

Section

 1.6

of this Agreement, no consent or action of, or filing or registration with, any governmental or public regulatory body or authority having jurisdiction over the Issuer is required to authorize, or is otherwise required in connection with, the execution, delivery or performance by the Issuer of this Agreement, the Master Note or the Issuing and Paying Agent Agreement or the consummation by the Issuer of the issuance and sale of, or the performance of its obligations under, the Notes, except (i) for the filing by the Issuer of a Current Report on Form

8-K

with the SEC if the Issuer reasonably determines such a filing is required or advisable or (ii) as may be required by the securities or Blue Sky laws of the various states in connection with the offer and sale of the Notes.

2.7 Neither the execution, delivery or performance by the Issuer of this Agreement, the Master Note or the Issuing and Paying Agent

Agreement nor the consummation by the Issuer of the issuance and sale of, or the performance of its obligations under, the Notes will (i) conflict with or result in a breach or violation of any of the terms or provisions of, or constitute a

default under, result in the termination, modification or acceleration of any indenture, mortgage, deed of trust, loan agreement or other agreement or instrument to which the Issuer is a party or by which the Issuer is bound or to which any

property, right or asset of the Issuer is subject, or result in the creation or imposition of any lien, charge or encumbrance upon any property, right or asset of the Issuer, (ii) conflict with, or result in any breach or violation of the

provisions of the charter or

by-laws

of the Issuer or (iii) conflict with, or result in the breach or violation of any law, regulation or statute or any judgment, writ, injunction, decree, order, rule or

regulation of any court or governmental or regulatory authority, except with respect to clauses

(i) and (iii) for any such conflict, breach, violation, default, lien, charge or encumbrance that would not, individually or in the aggregate, have a material adverse effect on the business, management, financial position or results of operations of the Issuer and its subsidiaries taken as a whole or on the ability of the Issuer to perform any of its obligations under this Agreement, the Issuing and Paying Agent Agreement or the Notes (a "Material Adverse Effect").

2.8 There is no litigation or governmental proceeding pending, or to the knowledge of the Issuer, threatened, against or affecting the Issuer or any of its subsidiaries (other than that which is disclosed in the Company Information) which could reasonably be expected to have a Material Adverse Effect.

2.9 The Issuer is not required to be registered as an investment company, as such term is defined in the Investment Company Act of 1940, as amended.

2.10 Neither the Private Placement Memorandum nor the Company Information (in each case, other than the Dealer Information) contains any untrue statement of a material fact or omits to state a material fact required to be stated therein or necessary to make the statements therein, in light of the circumstances under which they were made, not misleading.

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2.11 Except as disclosed in the Private Placement Memorandum or as otherwise notified in writing to the Dealer, in the last five years, neither the Issuer nor any of its subsidiaries nor any director or officer of the Issuer, nor, to the knowledge of the Issuer, any director or officer of any of the Issuer's subsidiaries or any other employee of the Issuer or any of its subsidiaries or any agent, other affiliate or other person acting on behalf of the Issuer or any of its subsidiaries has: (i) used any corporate funds for any unlawful contribution, gift, entertainment or other unlawful expense relating to political activity; (ii) made any direct or indirect unlawful payment or benefit to any foreign or domestic government official, including of any government-owned or controlled entity or of a public international organization, or any person acting in an official capacity for or on behalf of any of the foregoing, or any political party or party official or candidate for political office; (iii) violated or is in violation of any provision of the Foreign Corrupt Practices Act of 1977, as amended (the "FCPA"), or any applicable law or regulation implementing the OECD Convention on Combating Bribery of Foreign Public Officials in International Business Transactions (the "OECD Convention"), or committed an offence under the Bribery Act 2010 of the United Kingdom (the "Bribery Act"), or any other applicable anti-bribery or anti-corruption law (collectively with the FCPA, the OECD

Convention and the Bribery Act, the

Anti-Corruption Laws

); or (iv) used any corporate funds to make any unlawful bribe or other unlawful benefit, including, without limitation, any rebate, payoff, influence payment, kickback or other unlawful or improper payment or benefit; and the Issuer and its subsidiaries have each conducted their businesses in compliance with the applicable Anti-Corruption Laws and have instituted and maintain policies and procedures designed to promote, and which are expected to continue to promote, continued compliance with the applicable Anti-Corruption Laws by the Issuer, its subsidiaries and their respective directors, officers, agents, employees, representatives or other persons acting on behalf of the Issuer or any of its subsidiaries.

2.12 Except as disclosed in the Private Placement Memorandum or

as otherwise notified in writing to the Dealer, the operations of the Issuer and its subsidiaries are and have been conducted at all times in material compliance with applicable financial recordkeeping and reporting requirements, including those of

the Currency and Foreign Transactions Reporting Act of 1970, as amended, the applicable money laundering statutes of all jurisdictions where the Issuer or any of its subsidiaries conducts business, the rules and regulations thereunder and any

related or similar rules, regulations or guidelines, issued, administered or enforced by any governmental agency (collectively, the

Anti-Money Laundering Laws

), and no action, suit or proceeding by or before any court or

governmental agency, authority or body or any arbitrator involving the Issuer or any of its subsidiaries with respect to the Anti-Money Laundering Laws is pending or, to the knowledge of the Issuer, threatened.

2.13 Except as disclosed in the Private Placement Memorandum or as otherwise notified in writing to the Dealer, neither the Issuer nor

any of its subsidiaries, nor any director or officer of the Issuer, nor, to the knowledge of the Issuer, any director or officer of any of the Issuer's subsidiaries or any other employee, agent, or other controlled affiliate or other person

acting on behalf of the Issuer or any of its subsidiaries is currently the subject or the target of any sanctions administered or enforced by the U.S. government (including, without limitation, the Office of Foreign Assets Control of the U.S.

Department of the Treasury or the U.S. Department

;

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of State and including, without limitation, the designation as a specially designated national; or blocked person;), the United Nations Security Council, the European Union, His Majesty's Treasury, or other relevant sanctions authority (collectively, the

Sanctions

), nor is the Issuer or any of its subsidiaries located, organized or resident in a country or territory that is the subject or

target of Sanctions, including, without limitation as of the date of this Agreement, Cuba, Iran, North Korea, the Crimea region of Ukraine, the

so-called

Donetsk People's Republic, the

so-called

Luhansk People's Republic, the

non-government

controlled areas of the Zaporizhzhia and Kherson Regions of Ukraine and any other Covered Region; of

Ukraine identified pursuant to Executive Order 14065 (each, a

Sanctioned Country

); and the Issuer will not use the proceeds of the offering of the Notes, or lend, contribute or otherwise make available such proceeds to any

subsidiary, joint venture partner or other person or entity (i) to fund or facilitate any activities of or business with any person that, at the time of such funding or facilitation, is the subject or target of Sanctions, to the extent in

violation of Sanctions, (ii) to fund or facilitate any activities of or business in any Sanctioned Country, to the extent in violation of Sanctions, or (iii) in any other manner that will result in a violation by any person (including any

person participating in the offering of Notes, whether as Dealer, advisor, investor or otherwise) of Sanctions. Except as disclosed in the Private Placement Memorandum or as otherwise notified in writing to the Dealer, in the last five years, the

Issuer and its subsidiaries have not knowingly engaged in, are not now knowingly engaged, in violation of Sanctions, in any dealings or transactions with any person that at the time of the dealing or transaction is or was the subject or the target

of Sanctions or with any Sanctioned Country.

2.14 Except as disclosed in the Private Placement Memorandum or as otherwise notified

in writing to the Dealer, (i) the Issuer and its subsidiaries' information technology assets and equipment, computers, systems, networks, hardware, software, websites, applications and databases (collectively, the

IT

Systems

) are adequate for, and operate and perform in all material respects as required in connection with the operation of the business of the Issuer and its subsidiaries as currently conducted free and clear of all material bugs,

errors, defects, Trojan horses, time bombs, malware and other corruptants, (ii) the Issuer and its subsidiaries have implemented and maintained commercially reasonable controls, policies, procedures, and safeguards to maintain